

MASTER SERVICES AGREEMENT

This Master Services Agreement (this "Agreement") is made and entered into as of June 1, 2026 (the "Effective Date") by and between Rally, Inc., a Delaware corporation ("Provider"), and Vantage Materials, Inc. ("Customer"), each a "Party" and collectively the "Parties."

WHEREAS, Provider is in the business of providing implementation, integration, and ongoing platform services to enterprise customers; and WHEREAS, Customer desires to engage Provider to provide certain of such services, and Provider desires to provide such services to Customer, subject to the terms and conditions set forth in this Agreement; NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

ARTICLE 1 DEFINITIONS

For purposes of this Agreement, the following capitalized terms shall have the meanings set forth below. Other capitalized terms used but not defined in this Article shall have the meanings given to them elsewhere in this Agreement.

"Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a party, where 'control' means ownership of more than fifty percent (50%) of the voting securities of such entity.

"Authorized User" means an employee, contractor, or agent of Customer who has been granted access to the Services by Customer and who is bound by confidentiality obligations no less protective than those in this Agreement.

"Confidential Information" means any non-public information disclosed by one party to the other, whether orally, in writing, or by inspection, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

"Deliverables" means any work product, reports, code, documentation, or other materials specifically created by Provider for Customer under a Statement of Work.

"Documentation" means the user manuals, technical manuals, and other materials provided by Provider, in printed, electronic, or other form, describing the installation, operation, use, or technical specifications of the Services.

"Effective Date" means the date first written above on which this Agreement becomes binding on the parties.

"Fees" means the amounts payable by Customer to Provider as set forth in Article 4 (Fees and Payment) and any applicable Statement of Work.

"Force Majeure Event" means any event beyond the reasonable control of the affected party, including acts of God, natural disaster, war, terrorism, riot, embargo, act of civil or military authority, fire, flood, strike, or other labor disturbance, or failure of third-party telecommunications or internet infrastructure.

"Intellectual Property Rights" means all patent rights, copyright rights, mask work rights, moral rights, rights of publicity, trademark, trade dress, and service mark rights, goodwill, trade secret rights, and other intellectual property rights as may exist now or hereafter come into existence, and all applications and registrations, renewals, and extensions thereof, under the laws of any state, country, territory, or other jurisdiction.

"Losses" means any and all losses, damages, liabilities, deficiencies, claims, actions, judgments, settlements, interest, awards, penalties, fines, costs, or expenses of whatever kind, including reasonable attorneys' fees.

"Personal Data" means any information relating to an identified or identifiable natural person that is processed by Provider on behalf of Customer in connection with the Services.

"Service Level Agreement" means the service level commitments applicable to the Services, as may be updated by Provider from time to time and made available to Customer.

"Services" means the services described in this Agreement and any applicable Statement of Work, to be provided by Provider to Customer.

"Statement of Work" means a document executed by both parties describing specific Services, Deliverables, fees, and timelines, which upon execution shall be incorporated into and governed by this Agreement.

"Term" means the period during which this Agreement is in effect, as described in Article 3 (Term and Termination).

“Third-Party Products” means products or services provided by a third party that interoperate with the Services, which are not part of the Services and are governed by separate terms between Customer and the applicable third party.

ARTICLE 2 ENGAGEMENT

2.1 Engagement of Provider. Customer hereby engages Provider, and Provider hereby accepts such engagement, to perform the Services in accordance with the terms of this Agreement and any applicable SOW. This Agreement establishes the general terms and conditions under which Provider will provide Services to Customer from time to time; it does not, by itself, obligate Customer to purchase, or Provider to perform, any specific Services absent an executed SOW.

2.2 Relationship of the Parties. The Parties are independent contractors. Nothing in this Agreement shall be construed to create a partnership, joint venture, agency, or employment relationship between the Parties. Neither Party has the authority to bind the other Party or to incur any obligation on the other Party's behalf.

ARTICLE 3 SERVICES

3.1 Scope of Services. Provider shall perform the services described in one or more Statements of Work executed by the parties from time to time (each, an "SOW"). Each SOW shall specify, at a minimum, the Services to be performed, the applicable fees, the timeline, and any Deliverables. In the event of a conflict between the terms of this Agreement and an SOW, the terms of this Agreement shall govern unless the SOW expressly states an intention to override a specific provision of this Agreement.

3.2 Performance Standards. Provider shall perform the Services in a professional and workmanlike manner consistent with generally accepted industry standards. Provider shall use commercially reasonable efforts to meet any timelines set forth in an applicable SOW, provided that such timelines are estimates only unless expressly designated as firm deadlines.

3.3 Changes to Services. Either party may propose changes to the scope of Services under an SOW by submitting a written change request. No change shall be binding unless and until it is documented in a written change order signed by authorized representatives of both parties.

3.4 Subcontractors. Provider may engage subcontractors to perform portions of the Services, provided that Provider remains fully responsible for the performance of such subcontractors as if such Services were performed by Provider directly.

3.5 Customer Responsibilities. Customer shall (a) provide Provider with timely access to such information, personnel, and systems as are reasonably necessary for Provider to perform the Services; (b) designate a primary point of contact with authority to make decisions on Customer's behalf regarding the Services; and (c) respond to Provider's reasonable requests for information or approvals without undue delay.

ARTICLE 4 FEES AND PAYMENT

4.1 Fees. In consideration for the Services, Customer shall pay Provider the fees set forth in the applicable SOW. The total contract value under this Agreement, inclusive of all Services contemplated as of the Effective Date, is **\$186,400.00 USD**. Unless otherwise specified in an applicable SOW, all fees are quoted and payable in United States Dollars.

4.2 Invoicing and Payment Terms. Provider shall invoice Customer in accordance with the schedule set forth in the applicable SOW. Customer shall pay each undisputed invoice within **Net 60** of the invoice date. Amounts not paid when due shall accrue interest at the lesser of one and one-half percent (1.5%) per month or the maximum rate permitted by applicable law.

4.3 Disputed Invoices. Customer shall notify Provider in writing of any good faith dispute regarding an invoice within fifteen (15) days of receipt, together with reasonable detail regarding the basis for the dispute. The Parties shall cooperate to resolve any such dispute promptly. Customer shall pay all undisputed amounts on any invoice notwithstanding a dispute over a portion of that invoice.

4.4 Taxes. Fees are exclusive of all applicable sales, use, value-added, and similar taxes, which shall be the responsibility of Customer, excluding taxes based on Provider's net income.

4.5 Term of Fee Schedule. The fee schedule set forth in this Article 4 shall remain in effect for the duration of the Term, being **36 months** from the Effective Date, unless earlier terminated in accordance with Article 5.

ARTICLE 5 TERM AND TERMINATION

5.1 Term. This Agreement shall commence on the Effective Date and shall continue for 36 months thereafter (the "Initial Term"), unless earlier terminated as provided herein. Following the Initial Term, this Agreement shall automatically renew for successive twelve (12) month periods unless either Party provides written notice of non-renewal at least sixty (60) days prior to the end of the then-current term.

5.2 Termination for Cause. Either Party may terminate this Agreement upon written notice if the other Party materially breaches this Agreement and fails to cure such breach within thirty (30) days after receiving written notice describing the breach in reasonable detail.

5.3 Termination for Insolvency. Either Party may terminate this Agreement immediately upon written notice if the other Party becomes insolvent, makes an assignment for the benefit of creditors, or becomes subject to any bankruptcy or similar proceeding that is not dismissed within sixty (60) days.

5.4 Effect of Termination. Upon termination or expiration of this Agreement, Customer shall pay all Fees accrued through the effective date of termination. Sections that by their nature should survive termination, including without limitation Articles 6 (Confidentiality), 7 (Limitation of Liability), 8 (Intellectual Property), and 12 (Miscellaneous), shall survive any termination or expiration of this Agreement.

ARTICLE 6 CONFIDENTIALITY

6.1 Confidentiality Obligations. Each Party agrees to protect the other Party's Confidential Information using at least the same degree of care it uses to protect its own confidential information of similar nature, but in no event less than a reasonable degree of care. Neither Party shall use the other Party's Confidential Information except as necessary to perform its obligations or exercise its rights under this Agreement, nor disclose such information to any third party except to its employees, contractors, and advisors who have a need to know and who are bound by confidentiality obligations no less protective than those set forth herein.

6.2 Exceptions. The obligations in this Article shall not apply to information that (a) is or becomes publicly available through no fault of the receiving Party; (b) was rightfully known to the receiving Party prior to disclosure; (c) is rightfully obtained by the receiving Party from a third party without restriction; or (d) is independently developed by the receiving Party without use of or reference to the disclosing Party's Confidential Information.

6.3 Compelled Disclosure. If the receiving Party is compelled by law to disclose the disclosing Party's Confidential Information, it shall, to the extent legally permissible, provide the disclosing Party with prior written notice sufficient to allow the disclosing Party to seek a protective order or other appropriate remedy.

ARTICLE 7 LIMITATION OF LIABILITY

7.1 Limitation of Liability. EXCEPT FOR A PARTY'S INDEMNIFICATION OBLIGATIONS, BREACH OF CONFIDENTIALITY OBLIGATIONS, OR GROSS NEGLIGENCE OR WILLFUL MISCONDUCT, IN NO EVENT SHALL EITHER PARTY'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT EXCEED THE TOTAL FEES PAID OR PAYABLE BY CUSTOMER TO PROVIDER IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

7.2 Exclusion of Consequential Damages. IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR ANY LOSS OF PROFITS, REVENUE, DATA, OR BUSINESS OPPORTUNITY, ARISING OUT OF OR RELATED TO THIS AGREEMENT, REGARDLESS OF THE THEORY OF LIABILITY, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

ARTICLE 8 INTELLECTUAL PROPERTY

8.1 Ownership. Except as expressly set forth in an applicable SOW, each Party shall retain all right, title, and interest in and to its pre-existing Intellectual Property Rights. Subject to full payment of applicable Fees, Provider hereby assigns to Customer all right, title, and interest in and to any Deliverables specifically created for Customer under an SOW, excluding any of Provider's pre-existing materials, tools, or methodologies incorporated therein, which Provider hereby licenses to Customer on a non-exclusive, royalty-free, perpetual basis solely as necessary for Customer to use the Deliverables as intended.

8.2 Feedback. If Customer provides Provider with suggestions, comments, or other feedback regarding the Services, Provider may use such feedback without restriction or obligation to Customer.

ARTICLE 9 REPRESENTATIONS AND WARRANTIES

6.1 Mutual Authority. Each party represents and warrants that it has the full right, power, and authority to enter into this Agreement and to perform its obligations hereunder, and that the execution and performance of this Agreement does not and will not violate any other agreement to which it is a party.

6.2 Provider Warranty. Provider warrants that the Services will be performed in a professional manner consistent with generally accepted industry standards. Customer's sole and exclusive remedy, and Provider's entire liability, for any breach of this warranty shall be the re-performance of the applicable Services.

6.3 Disclaimer. EXCEPT AS EXPRESSLY SET FORTH IN THIS ARTICLE, THE SERVICES ARE PROVIDED "AS IS" AND PROVIDER DISCLAIMS ALL OTHER WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, INCLUDING WITHOUT LIMITATION ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT, ALL OF WHICH ARE HEREBY DISCLAIMED TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW.

ARTICLE 10 INDEMNIFICATION

10.1 Indemnification by Provider. Provider shall defend, indemnify, and hold harmless Customer from and against any Losses arising out of a third-party claim alleging that the Services, as provided by Provider and used in accordance with this Agreement, infringe such third party's Intellectual Property Rights.

10.2 Indemnification by Customer. Customer shall defend, indemnify, and hold harmless Provider from and against any Losses arising out of a third-party claim relating to Customer's use of the Services in violation of this Agreement or applicable law, or Customer Data provided to Provider.

10.3 Procedure. The indemnified Party shall promptly notify the indemnifying Party in writing of any claim subject to indemnification, tender sole control of the defense and settlement of such claim to the indemnifying Party, and provide reasonable cooperation at the indemnifying Party's expense.

ARTICLE 11 INSURANCE AND COMPLIANCE

11.1 Insurance. During the Term, Provider shall maintain commercial general liability insurance, professional liability (errors and omissions) insurance, and workers' compensation insurance, each in commercially reasonable amounts consistent with industry practice, and shall provide certificates of insurance to Customer upon reasonable request.

11.2 Compliance with Laws. Each Party shall comply with all applicable laws, rules, and regulations in connection with its performance under this Agreement, including without limitation applicable data protection, export control, and anti-corruption laws.

11.3 Data Protection. To the extent Provider processes Personal Data on Customer's behalf in connection with the Services, Provider shall implement and maintain reasonable administrative, technical, and physical safeguards designed to protect the security, confidentiality, and integrity of such Personal Data.

ARTICLE 12 MISCELLANEOUS

12.1 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles.

12.2 Dispute Resolution. The parties shall attempt in good faith to resolve any dispute arising out of or relating to this Agreement through negotiation between executives who have authority to settle the dispute. If the dispute is not resolved within thirty (30) days, either party may pursue any remedy available at law or in equity.

12.3 Assignment. Neither party may assign this Agreement without the prior written consent of the other party, except that either party may assign this Agreement without consent to an Affiliate or in connection with a merger, acquisition, or sale of all or substantially all of its assets.

12.4 Notices. All notices under this Agreement shall be in writing and delivered by email with confirmation of receipt, or by certified mail, return receipt requested, to the addresses set forth in the applicable SOW or as otherwise designated by the parties in writing.

12.5 Entire Agreement. This Agreement, together with all SOWs and exhibits, constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior and contemporaneous agreements, proposals, or representations, whether written or oral.

12.6 Severability. If any provision of this Agreement is held to be invalid or unenforceable, such provision shall be struck and the remaining provisions shall be enforced to the fullest extent permitted by law.

12.7 Waiver. No waiver of any term of this Agreement shall be deemed a further or continuing waiver of such term or any other term.

12.8 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument.

EXHIBIT A INITIAL STATEMENT OF WORK SUMMARY

The following summarizes the initial Statement of Work executed concurrently with this Agreement. In the event of any conflict between this summary and the full executed Statement of Work on file with the Parties, the full executed Statement of Work shall govern.

Phase	Description	Estimated Duration
Phase 1	Discovery and technical scoping	4 weeks
Phase 2	Core platform implementation	10 weeks
Phase 3	Data migration and integration	8 weeks
Phase 4	User acceptance testing	3 weeks
Phase 5	Go-live and hypercare support	4 weeks

EXHIBIT B SERVICE LEVEL AGREEMENT

This Exhibit B sets forth the service level commitments applicable to the Services during the Term. Capitalized terms used but not defined in this Exhibit have the meanings given to them in the Agreement.

B.1 Platform Availability

Metric	Target	Measurement Window	Service Credit
Monthly Uptime	99.9%	Calendar month	5% of monthly fees per 0.1% below target
Scheduled Maintenance Window	≤ 4 hours/month	Calendar month	N/A
Unplanned Downtime Notification	≤ 15 minutes	Per incident	N/A

B.2 Support Response Times

Severity	Definition	Initial Response	Target Resolution
Severity 1 — Critical	Complete service outage affecting all users	30 minutes	4 hours
Severity 2 — High	Major functionality impaired for multiple users	2 hours	1 business day
Severity 3 — Medium	Minor functionality impaired, workarounds available	4 business days	5 business days
Severity 4 — Low	Cosmetic issue or general question	2 business days	Best effort

B.3 Data Backup and Recovery

Metric	Commitment
Backup Frequency	Daily, automated, encrypted at rest
Backup Retention	30 days rolling
Recovery Point Objective (RPO)	24 hours
Recovery Time Objective (RTO)	8 hours

B.4 Security Commitments

Control	Description
Encryption in Transit	TLS 1.2 or higher for all external connections
Encryption at Rest	AES-256 for all stored Customer Data
Access Reviews	Quarterly review of personnel with production access
Penetration Testing	Annual third-party penetration test, summary available on request

Vulnerability Patching	Critical vulnerabilities remediated within 15 days of disclosure
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B.5 Exclusions. The service level commitments in this Exhibit B do not apply to unavailability caused by (a) a Force Majeure Event; (b) Customer's equipment, software, or network connectivity; (c) Customer's breach of the Agreement; (d) scheduled maintenance performed in accordance with Section B.1; or (e) suspension of the Services in accordance with the Agreement.

EXHIBIT C SERVICE CATALOG

This Exhibit C describes the individual service offerings available to Customer under this Agreement. Inclusion of a service in this catalog does not obligate Customer to purchase such service; specific services purchased shall be identified in the applicable SOW.

C.1 Implementation Services

End-to-end setup of the platform environment, including tenant provisioning, initial configuration of core modules, and validation testing to confirm the environment meets Customer's documented requirements prior to go-live.

C.2 Data Migration Services

Extraction, transformation, and loading of Customer's historical records from legacy systems into the platform, including data mapping, cleansing, deduplication, and a reconciliation pass to confirm migrated record counts and key totals match source systems.

C.3 Systems Integration

Development and configuration of connections between the platform and Customer's other business systems, including authentication setup, field mapping, and error-handling logic for failed synchronization attempts.

C.4 Custom Configuration

Tailoring of workflows, approval chains, notification rules, and reporting templates to match Customer's specific operational requirements, beyond the platform's default configuration.

C.5 Training Services

Live and recorded training sessions for Customer's Authorized Users, covering day-to-day platform usage, administrative functions, and troubleshooting common issues, together with supporting written materials.

C.6 Managed Support

Ongoing access to Provider's support desk for break-fix issues, configuration questions, and general guidance, subject to the response times set forth in Exhibit B.

C.7 Dedicated Customer Success

Assignment of a named customer success contact responsible for periodic business reviews, adoption guidance, and escalation management throughout the Term.

C.8 Custom Reporting

Design and delivery of bespoke reports or dashboards beyond the platform's standard reporting suite, to be scoped and estimated under a separate SOW.

C.9 Advanced Security Configuration

Implementation of Customer-specific security controls, including single sign-on integration, IP allow-listing, and custom data retention policies.

C.10 Change Management Support

Assistance with internal communications, adoption planning, and stakeholder alignment activities to support a successful rollout within Customer's organization.

SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date first written above.

Rally, Inc.

/s/ Alicia Chen

Alicia Chen, VP Customer Success

Billing contact: sales@rally.example

Vantage Materials, Inc.

/s/ Marcus Delgado

Marcus Delgado, Chief Procurement Officer

Billing contact: accounts.payable@vantagematerials.com